

APPENDIX No. 100

Voluntary Disclosure Proforma

**Voluntary Disclosure Proforma for reporting of Non-
Compliance/Violation related to export of SCOMET
goods/software/technology listed in Appendix 3 to Schedule 2 of
ITC(HS) Classification**

[Please refer to Standard Operating Procedure/Guidelines for Voluntary
Disclosure of Non-Compliance / Violations related to Export of SCOMET
Items and SCOMET Regulations]

1. Applicant Details:

i. Name																
ii. Designation in the organization																
ii. Address																
iii. Mobile No.	Country Code		Area Code													
Tele No. with STD code																
iv. Date of Submission of application																

2. Details of the applicant firm

i.	Name of the firm/company/individual	
ii.	Complete official address (including Pin code)	
iii.	A brief profile of the company, including its business activities on a separate sheet	
iv.	Whether Internal Trade Compliance Program (ICP) instituted (Y/N)	
v.	Whether the firm has obtained SCOMET authorisation in the past (Y/N)	
vi.	Previous SCOMET authorisation No. and date/ DGFT reference No. (if any issued during past years)	

3. Details of Non-compliance:

i.	Type of Violation made (refer to SOP) A precise description of the nature and extent of the violation	
ii.	Period of non-compliance (Period between date of violation and date of reporting)	
iii.	Whether Customs or any other enforcement /licensing authority has issued any Show Cause Notice (SCN) or communication - (Y/N)	
iv.	If reply to (iii) is 'Yes', provide a copy of SCN/communication	
v.	Dates of all shipments relating to export violation, mode of export, and port of load/discharge, wherever applicable	
vi.	The circumstances that lead to the violation. Include details of the violation, how the violation was uncovered (a separate sheet may be annexed, if required).	
vii.	For each export shipment in question, a statement as to whether the export took place intentionally	
viii.	Description of steps taken or processes and procedures put in place to ensure that where required, export license will be obtained in future	
ix.	The name and address of the person making the disclosure and a point of contact, if different may be indicated	
x.	SCOMET authorization No. & Date, License exception or description of any other authorization, if applicable; (Past three years)	
xi.	Any other information that the exporter believes is relevant to the purpose of the disclosure	

4. Supporting documents required:

Sl. No.	Name of the document	Attached (Yes/No)
i.	Covering Letter [On the letterhead of the firm signed by a senior officer(not below the rank of export compliance manager) providing brief description of the violation made and stating that all of the representations made in connection with the voluntary disclosure are true and correct to the best of that person's knowledge and belief]	
ii.	Application in ANF 20 proforma through online portal of DGFT, wherever applicable	
iii.	Copy of SCN issued by Customs, wherever applicable or any other communication issued by licensing /enforcement agencies	

iv.	Technical drawings (Information on Product/Technology), where applicable	
v.	Technical Specifications/Data Sheets/Brochures of the product(s), where applicable	
vi.	Relevant Undertakings and Declaration in terms of DGFT's prescribed Public Notices, where applicable	
vii.	Purchase Order/Contract Agreement/Warranty Policy Conditions, where applicable	
viii.	End User Certificate from all the entities in the supply chain, where applicable	
ix.	Export license from country of export, where applicable	
x.	Bill of Entry, wherever applicable	
xi.	Airway Bills, wherever applicable	
xii.	Shipping Bills/ Invoices, wherever applicable	
xiii.	Bills of Lading, where applicable	
xiv.	Export/Re-export Licence(s) from DGFT, where applicable	
xv.	Copy of Master Service Agreement (MSA)/ Contract with the foreign company and the Indian Subsidiary where applicable	
xvi.	A self-certified copy of the ICP of the company or of the parent company being adopted by Indian subsidiary; where applicable	
xvii.	License Exemption/Exception proof & validity, where applicable	
xviii.	Technology Control Plan, wherever applicable	
xix.	Any other documentation that the exporter believes is relevant to the purpose of the disclosure	

5. Contact details of signatory:

Signature of Authorized signatory:

Name (in full):

Designation:

Contact Details (Tele No. / Mobile No.):

Email (also provide alternate email, if any):

Company Stamp/Official seal:

Date:

Place: